

Tamil Nadu State Khadi and Village Industries and Board Regulations, 1961

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Tamil Nadu State Khadi and Village Industries and Board Regulations, 1961

Rule TAMIL-NADU-STATE-KHADI-AND-VILLAGE-INDUSTRIES-AND-BOARD-REGULATIONS-1961 of 1961

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Tamil Nadu State Khadi and Village Industries and Board Regulations, 1961

In exercise of the powers conferred by section 30 of the Tamil Nadu Khadi and Village Industries Board Act, 1959 (Tamil Nadu Act 18 of 1959), the State Khadi and Village Industries Board hereby makes the following regulations:

1.

Short title.

- These regulations may be called the Tamil Nadu State Khadi and Village Industries Board Regulations, 1961.

2.

Definitions.

- In these regulations, unless the context otherwise requires,-

(a)

"Act" means the Tamil Nadu Khadi and Village Industries Board Act, 1959 (Tamil Nadu Act 18 of 1959);

(b)

"Agenda" means the list of business propose to be transacted at a meeting of the Board;

(c)

"Chairman" means the Chairman of the Standing Finance Committee;

(d)

"Presiding Authority" means the president or the Vice-President or, in their absence, any member chosen to preside over any meeting of the Board; and

(e)

"Vice-President" means the Vice-President of the Board elected under Clause (c) of sub-section (2) of section 3 of the Act.

3.

Meetings.

- The time and place of each meeting of the Board shall be such as may be fixed by the President.

4.

Notice of the meeting.

- Ten clear days' notice of every meeting shall be given to all the members. The notice under these regulations maybe waived if the date, time and place of the meeting have already been fixed at the previous meeting or if the President considers it necessary to hold special meetings for the transaction of emergent business.

5.

Circulation of Agenda.

- A copy of the agenda with notes, if any, shall be circulated to all members of the Board before the date fixed for the meeting, except where a special meeting has been called by the President for the transaction of emergent business.

6.

Saving.

- Notwithstanding anything contained in regulation 5, any matter not included in the agenda for a meeting of the Board on which the decision of the Board is urgently required may, with the approval of the presiding authority, be placed before the meeting and the Board may consider such matter.

7.

Validation of proceedings.

- Non-receipt of notice or agenda of a meeting by any member shall not invalidate the proceedings or any resolution passed at such meeting.

8.

Moving of propositions.

- Any member who desired to move any proposition shall send a notice of such proposition together with a brief note setting out the reasons in support of the proposition to the Secretary at least five days in advance of the meeting so as to enable the proposition being included in the agenda:

Provided that the presiding authority may, at his discretion, allow such proposition to be moved in a meeting despite non-receipt of notice of the proposition in time for inclusion in the agenda.

9.

Orders of business.

- The order in which any business may be transacted or any time taken up for consideration at any meeting shall be determined by the presiding authority.

10.

Quorum.

- The quorum at every meeting shall be one third of the total number of members of the Board.

11.

Procedure when there is no quorum.

- (i) If at the time fixed for the meeting, the number of members present is to equal to the quorum required therefor under regulation (10), the President shall wait for 30 minutes.

(ii)

If at the expiry of the period specified in clause (i) The number of members present is not equal to the Quorum required under regulation 10, the President shall adjourn the meeting.

12.

Adjournment.

- (i) If the Board so resolves, the President may, at any time, adjourn any meeting to any future day or to any hour of the same day and, if practicable, an intimation in that behalf shall be given to all members who were not present at the meeting:

(ii)

Provided that no business left unfinished shall be transacted at any adjourned meeting and such other business of which notice was given to the members in accordance with the provisions of these regulations.

13.

Procedure in the next meeting.

(1)

When a meeting is adjourned to a future date, any item on the agenda under discussion or remaining to be discussed at the time of such adjournment shall, unless the President directs otherwise have the same precedence which it had in the agenda immediately before such adjournment of the business of the adjourned meeting.

(2)

Any proposal on which the decision of the Board, is urgently required maybe circulated to the members and, if approved by not less than two thirds of the total number of members of the Board may be deemed to have been passed as a resolution at a meeting of the Board duly convened. Such decision shall be placed before the next meeting of the Board for ratification.

14.

Evidence.

- The Board may. take evidence or hear any person in the matters concerning the affairs of the Board.

15.

Power to correct or alter minutes.

- The presiding authority shall have the power to correct any obvious errors and to make drafting alterations in the minutes of the meeting, provided that such corrections or alterations do not change the sense of the decision taken at the meeting.

16.

Powers and duties of the standing Finance Committee.

- The Standing Finance Committee shall deal with all applications to the Board for sanction of financial assistance and all sanctions pertaining to the Budget and other financial matters of the Board which are not within the powers of any officer under the control of the Board, and any other matter assigned by the Board. The functions of the Standing Finance Committee will be governed as follows:-

(i)

Term of office and conditions for reappointment of the members of the Standing Finance Committee. - The members of the Standing Finance Committee shall hold office so long as they continue to be members of the Board and shall on the expiry of their terms of office, be eligible for reappointment, if they are reappointed as members of the Board.

(ii)

Resignation of office by members. - Any member of the Committee may resign his office at any time and such resignation shall take effect from the date from which it is accepted by the Board.

(iii)

Meeting of the Committee. - The Committee shall meet at least once a month for the purpose of discharging its functions. It shall be the duty of the Secretary of the Board with the approval of the Chairman of the Committee to call, whenever necessary, meetings of the Committee and to give the members thereof not less than seven days' notice in writing of the date, time and place of the proposed meeting provided, however, that no further notice need be given of an adjourned meeting. The Chairman may reduce the prescribed period of notice whenever it is necessary to call for a meeting of the Committee to consider any emergent business or situation.

(iv)

Agenda. - The Secretary shall send to each member sufficiently in advance, a copy of the agenda for the meeting together with the notices, if any, on the various subjects, included therein.

(v)

Special meetings on requisition by members. - The Secretary shall also with the concurred of the Chairman call for special meetings of the Committee on written requisitions signed by not less than two members of the Committee.

(vi)

Meetings to consider Budget. - There shall be an annual meeting of the Committee to consider the budget of the Board. The Committee shall also meet to consider any supplementary budget of the Board.

(vii)

Place of meeting. - Unless the Board, otherwise, directs all meetings of the Committee shall be held at the headquarters of the Board.

(viii)

Presiding Authority. - The Chairman shall preside at every meeting. In his absence, the members present shall elect a Chairman from among themselves.

(ix)

Quorum. - (a) Quorum for a meeting of the Committee shall be 3 including the Chairman.

(b)

If, there is no quorum within 30 minutes of the time appointed for the meeting, no meeting shall be held and the Chairman may then and there adjourn the meeting to a specific date. No quorum shall be necessary for an adjourned meeting.

(c)

If, at any time during the course of the meeting after its commencement, there is no quorum, it shall not be dissolved but shall continue to be held.

(x)

Matters to be discussed in the meeting. - (a) Copies of the agenda and notes on the subjects included therein shall be made available to the members, if required during the meeting.

(b)

No matter other than what is included in the agenda for the meeting shall be considered or discussed at the meeting except with the permission of the Chairman, who may, if he/she considers necessary, put the question to vote.

(c)

No matter shall be considered at an adjourned meeting other than the matter left over at the meeting from which the adjournment took place:

Provided that the Chairman may with due notice bring or direct to be brought before an adjourned meeting any new matter which in his/her opinion is urgent.

(d)

The Chairman may, without any notice, bring or direct to be brought before a meeting, adjourned or otherwise any new matter which in his/ her opinion is urgent.

(e)

Any point of order raised in a meeting shall be decided by its Chairman whose decision shall be final.

(xi)

Voting and decisions. - (a) The members of the Committee including the Chairman shall have one vote each.

(b)

All question shall be decided by a majority of votes of the members present. In the event of an equality of votes, the Chairman shall have and exercise a casting or second vote.

(xii)

Officers of the Board not being members thereof or such persons, whose participation in the meeting is considered necessary may be invited to attend any meeting of the Committee.

(xiii)

In cases not expressly provided for in the rules, the decisions of the Chairman presiding at the meeting on all matters relating to the conduct of business at the meeting shall be final.

(xiv)

Proceedings of the meeting. - (a) The proceedings of every meeting shall be recorded and compiled by the Secretary, in an appropriate manner subject to approval of the Chairman, a copy being communicated to each member.

(b)

No proceedings of t^e committee shall be invalidated by reason merely of a vacancy of vacancies existing in the Committee or by reason of non-receipt of notice or the agenda for the meeting or both, provided it was duly issued or by any reason of irregularity in the conduct of the business of the meeting.

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